

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

JAHAAAD PETTY, an Infant over Fourteen Years of Age,
by His Mother and Natural Guardian, MARION PETTY,

Index No.:

Plaintiff,

– against –

COMPLAINT

MIGUEL MEJIA, CITY OF NEW YORK, DILLON
SHIMANSKY, JOHN DOE EMPLOYER, and JOHN
DOES 1-20,

Defendants.

Plaintiff Jahaad Petty, an Infant over Fourteen Years of Age, by His Mother and Natural Guardian, Marion Petty, and through his attorneys, Mark A. Marino, PC, for his Complaint against Defendant Miguel Mejia, Defendant City of New York, Defendant Dillon Shimansky, Defendant John Doe Employer, and Defendant John Does 1-20, upon personal knowledge and upon information and belief, alleges as follows:

PARTIES

1. Plaintiff Jahaad Petty is, and was at the time of the incidents giving rise to this action, a resident of the County of Queens, State of New York (“Plaintiff”).
2. Plaintiff’s mother and natural guardian, Marion Petty, is, and was at the time of the incidents giving rise to this action, a resident of the County of Queens, State of New York.
3. Defendant Miguel Mejia is, and was at the time of the incidents giving rise to this action, a resident of the County of Queens, State of New York (“Mejia”).
4. Defendant Mejia was, at the time of the incidents giving rise to this action, acting within the scope of employment with Defendant John Doe Employer.

5. Defendant City of New York is, and was at the time of the incidents giving rise to this action, a municipal corporation duly organized under, and existing by virtue of, the laws of the State of New York.

6. Defendant City of New York operates and controls the New York City Police Department (the "NYPD").

7. Defendant City of New York operates and controls the New York City Fire Department (the "FDNY").

8. Defendant Dillon Shimansky is a police officer with the NYPD and a member of Queens Patrol Boro South, working out of the NYPD's 113th Precinct with shield number 953398 ("Shimansky").

9. Defendant Shimansky was, at the time of the incidents giving rise to this action, acting within the scope of employment with Defendant City of New York.

10. Defendant Shimansky was, at the time of the incidents giving rise to this action, acting under color of state law.

11. Defendant John Doe Employer is, and was at the time of the incidents giving rise to this action, a business entity, including, but not limited to, a partnership, limited liability company, domestic business corporation, foreign business corporation, any other business entity licensed to do business in the State of New York, or an unincorporated business. Although the name of Defendant John Doe Employer is yet unknown, Plaintiff expects that its identity will present itself during the course of litigation.

12. Defendant John Doe Employer is, and was at the time of the incidents giving rise to this action, the employer of Defendant Mejia.

13. Defendant John Does 1-20 are, and were at the time of the incidents giving rise to this action, employed by Defendant City of New York as members of the NYPD or FDNY ("John Does"). Although the names of Defendant John Does are yet unknown, Plaintiff expects that their identities will present themselves during the course of litigation.

14. Defendant John Does were, at the time of the incidents giving rise to this action, acting within the scope of employment by Defendant City of New York.

15. Defendant John Does were, at the time of the incidents giving rise to this action, acting under color of state law.

16. Defendant Shimansky and Defendant John Does are hereinafter referred to, collectively, as the "Individual Defendants."

17. Defendant Mejia, Defendant City of New York, Defendant Shimansky, Defendant John Doe Employer, and Defendant John Does are hereinafter referred to, collectively, as "Defendants."

JURISDICTION AND VENUE

18. This Court has jurisdiction over the parties pursuant to New York's Civil Practice Law and Rules ("CPLR") §301.

19. Venue in this County is proper pursuant to CPLR §504(3), as the claim arose in the County of Queens.

20. Plaintiff demands judgment against Defendants in an amount exceeding the jurisdiction of all lower courts.

21. As a result of the foregoing, plaintiff seeks damages in an amount which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction over this action.

PROCEDURAL REQUIREMENTS

22. Plaintiff has complied with General Municipal Law Section 50 and all procedural requirements necessary to commence a lawsuit against Defendants, including Defendant City of New York.

23. This is an action for physical and psychological injuries, as well as past and future medical expenses, among other things, sustained by Plaintiff arising out of the incidents giving rise to this action.

24. On or about July 24, 2013, within ninety days after the accrual of the instant action, a satisfactory Notice of Claim was filed with Defendant City of New York, or its agent(s), on behalf of Plaintiff.

25. On or about October 7, 2013, Plaintiff appeared for, and testified at, a hearing pursuant to Section 50(h) of the General Municipal Law of New York at the request of Defendant City of New York or its agent(s).

26. Defendant City of New York, and/or its agent(s), has refused or neglected to make any adjustment or payment on Plaintiff's claims (as stated in Plaintiff's Notice of Claim).

27. Plaintiff commences this action within one year and ninety days of the date of accrual of the instant action.

FIRST CAUSE OF ACTION
NEGLIGENCE
As Against Defendant Mejia and Defendant John Doe Employer

28. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 27, inclusive, as though fully set forth herein.

29. On May 10, 2013, Defendant Mejia owned a 2004 Chevrolet Suburban with New York license plate number FFZ9568 (the "Motor Vehicle").

30. On May 10, 2013, Defendant Mejia operated the Motor Vehicle.

31. On May 10, 2013, Defendant Mejia controlled the Motor Vehicle.

32. On May 10, 2013, Defendant Mejia maintained the Motor Vehicle.

33. On May 10, 2013, Defendant Mejia was operating the Motor Vehicle with the consent, and at the direction, of Defendant John Doe Employer.

34. On May 10, 2013, Defendant John Doe Employer owned the Motor Vehicle.

35. On May 10, 2013, Defendant John Doe Employer operated the Motor Vehicle.

36. On May 10, 2013, Defendant John Doe Employer controlled the Motor Vehicle.

37. On May 10, 2013, Defendant John Doe Employer maintained the Motor Vehicle.

38. At all times herein mentioned, the following were public highways, intended for use and used as vehicular roadways in the County of Queens: Sutphin Boulevard, Foch Boulevard, and 116 Drive.

39. At approximately 9:00 p.m. on May 10, 2013, the Motor Vehicle stuck Plaintiff, who was a lawful pedestrian at the time.

40. The incident was caused by the negligence of Defendant Mejia and Defendant John Doe Employer insofar as he/they took the following (in)actions: recklessly and negligently operated the Motor Vehicle so as to cause the incident; operated the Motor Vehicle at a

dangerous, unlawful, and excessive rate of speed; operated the Motor Vehicle while in an inappropriate physical condition and state of mind; operated the Motor Vehicle while in a state of disrepair; failed to operate the Motor Vehicle in the proper portion of the roadway; failed to operate the Motor Vehicle in the proper direction; failed to keep any or adequate lookout; failed to give any or adequate signal or warning of approach or intended maneuver; failed to observe the conditions of vehicular and pedestrian traffic; failed to accord the right of way; failed to keep adequate distance; failed to adequately utilize the braking and other mechanisms available in the Motor Vehicle; failed in the duty of mutual forbearance; permitted and allowed the Motor Vehicle to be and become in a state of disrepair; permitted and allowed the Motor Vehicle to be operated by one not then competent to operate same; failed to observe and violated the rules, regulations, statutes, and ordinances in the circumstances then and there obtaining; and was otherwise negligent in respects presently unknown.

41. As result of the foregoing, Plaintiff sustained serious and permanent injuries, including physical injuries, psychological injuries, and loss of enjoyment of life.

42. Plaintiff was dragged down Sutphin Boulevard for a distance by the Motor Vehicle.

43. Plaintiff moved from the middle of the lane to the sidewalk with the help of a friend.

44. Plaintiff was knocked unconscious.

45. Plaintiff woke up and was incoherent.

46. Defendant Mejia did not approach Plaintiff to aid him.

47. The passenger in the Motor Vehicle did not approach Plaintiff to aid him.

48. As a result of the incidents giving rise to this action, Plaintiff sustained the following serious physical injuries: fractured foot; dizziness; back/neck injuries; tremors in his hands; blurred vision; and seizures.

49. Plaintiff spent two-four weeks at home after the incidents giving rise to this action (except to go to doctor's appointments).

50. Defendant John Doe Employer is liable for the acts of its agents/employees, including, but not limited to, Defendant Mejia, taken against Plaintiff during the course, and within the scope, of employment with Defendant John Doe Employer.

51. The actions taken by Defendant Mejia – and thus, by Defendant John Doe Employer – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

52. As a result of the incident, Plaintiff sustained serious and permanent injuries within the meaning of Section 5102 of the Insurance Law of the State of New York.

53. This action falls within one or more of the exceptions set forth in CPLR §1602.

54. The doctrine of res ipsa loquitur is claimed to be applicable herein.

SECOND CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS – 42 U.S.C. 1983 – DELIBERATE INDIFFERENCE
As Against Defendant Shimansky and Defendant City of New York

55. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 54, inclusive, as though fully set forth herein.

56. Plaintiff was dragged down Sutphin Boulevard by the Motor Vehicle.

57. Plaintiff moved from the middle of the lane to the sidewalk with the help of his friend.

58. Plaintiff was knocked unconscious.

59. Plaintiff woke up and was incoherent.

60. Defendant Shimansky did not approach Plaintiff to aid him.

61. Defendant Shimansky spoke only to Defendant Mejia and the passenger in the Motor Vehicle about the incident.

62. Defendant Shimansky did not talk to Plaintiff about the incident.

63. Defendant Shimansky refused to talk to Plaintiff's witnesses about the incident.

64. Plaintiff's mother had to help Plaintiff to the ambulance.

65. Plaintiff sustained injuries between the time he was stuck by the Motor Vehicle and the time he reached the ambulance.

66. As a result of the incidents giving rise to this action, Plaintiff sustained the following serious physical injuries: fractured foot; dizziness; back/neck injuries; tremors in his hands; blurred vision; and seizures.

67. Plaintiff spent two-four weeks at home after the incidents giving rise to this action (except to go to doctor's appointments).

68. Under the Constitution of the United States of America and 42 U.S.C. 1983, individuals have the right to humane treatment by police officers and others acting under color of state law, and a police officer shall not display a deliberate indifference to one's well-being.

69. Defendant Shimansky saw that Plaintiff was badly hurt and needed medical attention.

70. Defendant Shimansky displayed a deliberate indifference to Plaintiff's well-being by not offering or providing medical care for Plaintiff.

71. Defendant Shimansky displayed a deliberate indifference to Plaintiff's well-being by intentionally denying and/or delaying access to medical care.

72. Defendant Shimansky's denial and/or delay in providing Plaintiff with medical care caused or exacerbated the injuries to Plaintiff, including physical injuries, psychological injuries, medical expenses, among other things.

73. Defendant Shimansky knew or should have known that his actions would cause and/or exacerbate Plaintiff's injuries.

74. Defendant Shimansky took these actions against Plaintiff during the course, and within the scope, of his employment with Defendant City of New York.

75. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendant Shimansky, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

76. The actions taken by Defendant Shimansky – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

THIRD CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS – 42 U.S.C. 1983 – DELIBERATE INDIFFERENCE
As Against Defendant John Does and Defendant City of New York

77. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 76, inclusive, as though fully set forth herein.

78. The Motor Vehicle struck Plaintiff on his right side and pushed him halfway down Sutphin Boulevard from Foch Boulevard to 116 Drive.

79. Plaintiff moved from the middle of the lane to the sidewalk with the help of his friend.

80. Plaintiff was knocked unconscious.

81. Plaintiff woke up and was incoherent.

82. Defendant John Does, some of whom arrived in an ambulance, did not approach Plaintiff to aid him.

83. Defendant John Does did not aid him.

84. Plaintiff's mother had to help Plaintiff to the ambulance.

85. Plaintiff sustained injuries between the time he was stuck by the Motor Vehicle and the time he reached the ambulance.

86. As a result of the incidents giving rise to this action, Plaintiff sustained the following serious physical injuries: fractured foot; dizziness; back/neck injuries; tremors in his hands; blurred vision; and seizures.

87. Plaintiff spent two-four weeks at home after the incidents giving rise to this action (except to go to doctor's appointments).

88. Under the Constitution of the United States of America and 42 U.S.C. 1983, individuals have the right to humane treatment by police officers, fire fighters, and others acting

under color of state law, and police officers and fire fighters shall not display a deliberate indifference to one's well-being.

89. Defendant John Does saw that Plaintiff was badly hurt and needed medical attention.

90. Defendant John Does displayed a deliberate indifference to Plaintiff's well-being by not offering or providing medical care for Plaintiff.

91. Defendant John Does displayed a deliberate indifference to Plaintiff's well-being by intentionally denying and/or delaying access to medical care.

92. Defendant John Does' denial and/or delay in providing Plaintiff with medical care caused or exacerbated the injuries to Plaintiff, including physical injuries, psychological injuries, medical expenses, among other things.

93. Defendant John Does knew or should have known that his actions would cause and/or exacerbate Plaintiff's injuries.

94. Defendant John Does took these actions against Plaintiff during the course, and within the scope, of their employment with Defendant City of New York.

95. Defendant City of New York is liable for the acts of its agents/employees, including, but not limited to, Defendant John Does, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

96. The actions taken by Defendant John Does – and thus, by Defendant City of New York – against Plaintiff were willful, wanton, reckless, and malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FOURTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS – 42 U.S.C. 1983 – FAILURE TO INTERVENE
As Against the Individual Defendants and Defendant City of New York

97. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 96, inclusive, as though fully set forth herein.

98. Under the Constitution of the United States of America and 42 U.S.C. 1983, state actors have an affirmative duty to protect the constitutional rights of citizens by intervening when other state actors commit constitutional violations in their presence.

99. On May 10, 2013, certain of the Individual Defendants violated Plaintiff's constitutional rights when, in his/her/their presence, other Individual Defendants displayed a deliberate indifference to the medical needs of Plaintiff, yet he/she/they did not intervene to protect Plaintiff.

100. The (in)actions of certain of the Individual Defendants caused injuries to Plaintiff, including physical injuries, psychological injuries, emotional injuries, loss of freedom, lost wages, and past and future medical expenses, among other things.

101. Certain of the Individual Defendants took the aforementioned (in)actions against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

102. The (in)actions taken by certain of the Individual Defendants against Plaintiff were willful, wanton, reckless, and/or malicious, and therefore entitle Plaintiff to punitive damages in an amount to be determined at trial.

FIFTH CAUSE OF ACTION
VIOLATION OF CIVIL RIGHTS – 42 U.S.C. 1983 – MUNICIPAL LIABILITY
As Against Defendant City of New York

103. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 102, inclusive, as though fully set forth herein.

104. Defendant City of New York and its employees engage in the following unconstitutional policy and practice of refusing to talk to young black male pedestrians struck by automobiles or witnesses favorable to them.

105. Defendant City of New York and its employees engage in the following unconstitutional policy and practice of refusing to document any statements made by young black male pedestrians struck by automobiles or witnesses favorable to them.

106. Defendant City of New York, through explicit policies and protocols, has shown a deliberate indifference towards its citizens, including, but not limited to, Plaintiff, with respect to the foregoing unconstitutional policies.

107. Defendant City of New York, through customs or practices that are not written or formally adopted, but that are so pervasive as to have the effect of explicit policies or protocols, has shown a deliberate indifference towards its citizens, including, but not limited to, Plaintiff, with respect to the foregoing unconstitutional policies.

108. Plaintiff sustained serious injuries as a result of each of the foregoing unconstitutional explicit policies and protocols.

109. Plaintiff sustained serious injuries as a result of the foregoing unconstitutional customs or practices that are not written or formally adopted, but that are so pervasive as to have the effect of explicit policies and protocols.

SIXTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION
As Against Defendant City of New York

110. Plaintiff repeats and realleges each and every allegation contained in Paragraphs 1 through 109, inclusive, as though fully set forth herein.

111. Defendant City of New York has, and had at the time of the incidents giving rise to this action, a duty to adequately screen candidates for employment to ensure their competency.

112. Defendant City of New York has, and had at the time of the incidents giving rise to this action, a duty to adequately train its employees to ensure their competency.

113. Defendant City of New York has, and had at the time of the incidents giving rise to this action, a duty to adequately supervise its employees to ensure their competency.

114. Defendant City of New York has, and had at the time of the incidents giving rise to this action, a duty to train and supervise its employees, including Defendant Shimansky, to speak to young black male pedestrians struck by automobiles or witnesses favorable to them.

115. Defendant City of New York has, and had at the time of the incidents giving rise to this action, a duty to train and supervise its employees, including Defendant Shimansky, to document any statements made by young black male pedestrians struck by automobiles or witnesses favorable to them.

116. Defendant City of New York breached its aforementioned duties.

117. The Individual Defendants' actions caused Plaintiff to sustain serious injuries.

118. Defendant City of New York is liable for the acts of its agents/employees, including the Individual Defendants, taken against Plaintiff during the course, and within the scope, of employment with Defendant City of New York.

PRAYER FOR RELIEF

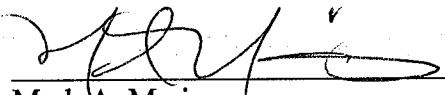
WHEREFORE, Plaintiff seeks judgment in his favor and against Defendants for the following relief:

- a. compensatory damages as against Defendants, jointly and severally, in an amount to be determined at trial;
- b. punitive damages as against Defendants, jointly and severally, in an amount to be determined at trial;
- c. attorney's fees incurred during this action, including, but not limited to, attorney's fees pursuant to 42 U.S.C. 1988(b);
- d. costs incurred during this action, including, but not limited to, costs pursuant to 42 U.S.C. 1988(b);
- e. expert fees incurred during this action, including, but not limited to, expert fees pursuant to 42 U.S.C. 1988(c);
- f. all statutory interest on any sums awarded to Plaintiff; and
- g. such other and further relief as the Court deems proper and fair.

Dated: New York, New York
January 23, 2014

Respectfully yours,

MARK A. MARINO, PC



Mark A. Marino
Attorney for Plaintiff Jahaad Petty
380 Lexington Avenue, 17th Floor
New York, New York 10168
Tel: 212.748.9552
Fax: 646.219.5350